

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

ALLAN WILLIAM

Plaintiff(s)

Index No.:

-against-

CITY OF NEW YORK and ERIC CAPOWSKI

Defendant(s)

SUMMONS IN A CIVIL ACTION

To the above named Defendants:

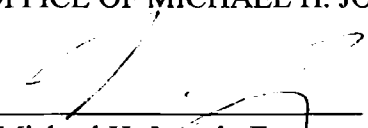
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
March 29, 2023

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:


Michael H. Joseph, Esq.

18 West 33rd Street, Suite 400

New York, N.Y. 10001

Tel: 212-858-0503

Email: Michael@newyorktriallawyers.org

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

ALLAN WILLIAM

Plaintiff(s)

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK and ERIC CAPOWSKI
Defendant(s)

JURY TRIAL DEMANDED

Plaintiff, by and through his undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for his complaint against Defendants states:

1. At all relevant times herein, plaintiff, Allan William, (Hereinafter "Plaintiff") was and is a resident of the State of New York, and Bronx County.
2. At all relevant times herein, Defendant Eric Capowski was and is a resident of the State of New York and Bronx County.
3. At all relevant times herein, the City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. On or about June 30, 2022 and at all times relevant herein, Defendant Eric Capowski was a duly sworn police officer employed by the City of New York.
5. On or about June 30, 2022 and at all times relevant herein, Defendant Eric Capowski was acting under the color of law and acting in the course and scope of his employment with the City of New York

COUNT I: FALSE ARREST UNDER NEW YORK STATE LAW

6. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
7. On June 23, 2022 at approximately 12:00 p.m., a person named Athena Robles, (Hereinafter “the victim”) was robbed, and cut with a knife, while she was riding on the subway, prior to the stop at Hugh Grant Circle and Metropolitan Avenue, in Bronx County, State of New York.
8. The perpetrator stole the victim’s I-phone and a gold necklace.
9. The victim described the perpetrator to responding police officers as a light skinned Hispanic male, in his 30s, wearing a dark hoodie and a white ski mask, who was approximately 5’7.
10. On June 23, 2022 at approximately 12:00 p.m., Plaintiff was waiting to for a subway at the subway station located at Hugh Grant Circle and Metropolitan Avenue, in Bronx County, State of New York.
11. When the train pulled into the station, police officers responded to the victim, and passengers were not allowed to board the train, so Plaintiff opted to leave the subway station and take a bus instead.
12. On June 23, 2022 at approximately 12:00 p.m., Plaintiff was a dark skinned Guyanese male, in his early 20s who was 5’3, and was wearing a light blue hoodie and a medical mask.
13. On June 23, 2022, the victim’s I phone was tracked and was found to be located in an apartment complex at 1301 Metropolitan Avenue, Bronx, N.Y.

14. At about the same time that the Defendants tracked the stolen I-Phone to the apartment complex at 1301 Metropolitan Avenue, Bronx, N.Y., Defendant knew from video surveillance that Plaintiff was boarding a bus in the vicinity of Hugh Grant Circle, which was approximately .3 miles away from where the stolen I-phone was tracked to.
15. At the aforesaid date, time, and place, Plaintiff had not committed any crime, was not involved in the robbery of the victim, and Plaintiff did not even board the train where the incident occurred, nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.
16. On or about June 23, 2022, Defendant Eric Capowski became the lead detective assigned to investigate the robbery of the victim.
17. On or about June 23, 2022, Defendant Eric Capowski, viewed video surveillance from the subway station and observed Plaintiff leaving the station.
18. Upon information and belief, after observing the video surveillance of Plaintiff leaving the station, Defendant did not review any further video surveillance.
19. At all times relevant herein, there were numerous exits from the subway station and defendant after observing Plaintiff wearing a hoodie, ceased investigation of any other cameras, despite the discrepancies between the description of the perpetrator and the Plaintiff.
20. At all times relevant herein, Defendant Eric Capowski, utilized a darkened screen shot from the video surveillance, which made Plaintiff's hoodie appear darker than it was and did not fairly represent the hoodie which the Plaintiff was wearing, and Defendant Eric Capowski showed same to the victim in order to obtain an erroneous positive identification.

21. At all times relevant herein, Defendant Eric Capowski had possession of images from the surveillance system, which fairly and accurately represented the Plaintiff's image, including the actual color of the hoodie which he was wearing, but he failed to show a fairly representative image of the Plaintiff to the victim and instead showed a screen shot which made Plaintiff's hoodie appear darker than it was, to make Plaintiff falsely appear to match the description of the perpetrator.
22. On or about June 23, 2022, Defendant Eric Capowski, created a wanted flyer, which contained a representative image of the color of the Plaintiff's hoodie and posted same through the subway station located in the vicinity of Hugh Grant Circle and Metropolitan Avenue, in Bronx County, State of New York.
23. On June 30, 2022, at approximately 4:30 a.m., Plaintiff observed his image on a wanted poster at the subway station located at Hugh Grant Circle and Metropolitan Avenue, in Bronx County, State of New York.
24. On June 30, 2022, at approximately 4:30 a.m., Plaintiff, approached the station attendant and informed them that he was the person in the wanted poster, but that he did not commit any robbery.
25. On June 30, 2022, at approximately 4:30 a.m., the police were called and Plaintiff was taken into custody and transported to the precinct and shortly thereafter, Defendant Eric Capowski, arrested the Plaintiff for the robbery and assault of the victim.
26. At the aforementioned time, date, and place, there was no probable cause or reasonable suspicion to believe that Plaintiff committed the aforesaid crimes, in that any semblance of probable cause was vitiated by the discrepancies between the perpetrator and the Plaintiff, by Defendant utilizing an image that made Plaintiff's hoodie appear to be darker

- than it was to willfully cause Plaintiff to be falsely identified, and the fact that Defendant was in possession of video surveillance which showed Plaintiff board a bus at Hugh Grant Circle, when the stolen I-phone was traced to an apartment complex approximately three tenths of a mile away from Hugh Grant Circle.
27. Defendant Eric Capowski, and the City of New York arrested, confined and caused Plaintiff to be arrested, deprived of his freedom and liberty, all without probable cause, excuse, or justification and without Plaintiff's consent.
 28. Defendants' actions violated clearly established rights.
 29. No reasonable officer in the position of Defendant Eric Capowski would have believed the actions of the Defendants herein were objectively reasonable.
 30. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of his freedom.
 31. The Defendants are jointly and severally liable to the harms caused to Plaintiff.
 32. Within ninety days after the occurrence complained of herein, Plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.
 33. A statutory hearing has been held and all prerequisites to suit have been fulfilled.

34. The City of New York is vicariously liable for the acts and omissions of Defendant Eric Capowski complained of herein, all of which were committed in the course and scope of Defendant Eric Capowski's employment based upon respondeat superior.
35. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

COUNT II: FALSE ARREST UNDER 42 U.S.C. § 1983

36. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
37. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not limited to his rights under the Fourth, Eighth, and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.
38. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and was caused to be deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.
39. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

**COUNT III: MALICIOUS PROSECUTION UNDER BOTH STATE LAW AND
42 USC 1983 AND VIOLATION OF PLAINTIFF'S DUE
PROCESS RIGHTS**

40. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

41. On June 30, 2022, Defendant Eric Capowski harshly interrogated the Plaintiff, and despite Plaintiff's repeated denials of any involvement in the robbery, and his maintaining of his innocence, Defendant Eric Capowski called Plaintiff a liar and used aggressive interrogation techniques in an attempt to get Plaintiff to confess to a crime that he did not commit.
42. On July 1, 2022, Defendant Eric Capowski initiated a prosecution against the Plaintiff by preparing, signing and swearing to a felony complaint against the Plaintiff which initiated a prosecution against the Plaintiff for Robbery in the First, Second and Third Degree, in violation of Penal Law §§ 1060.15, 160.10 and 160.05, as well as assault in the Second and Third Degrees in violation of Penal Law §§ 120.00 and 120.05, Criminal Possession of a Weapon, in violation of Penal Law § 265.01, Criminal Possession of Stolen Property in violation of 165.40 and Harassment in violation of Penal Law 240.26.
43. Defendant Eric Capowski initiated and continued the charges and prosecution against the Plaintiff by signing the felony complaint, by obtaining an identification by using a photograph that was darkened and contrived to make the Plaintiff's clothes appear darker and consistent with the description of the assailant, when in fact Plaintiff's hoodie was a light blue.
44. Defendants' actions violated Plaintiff's Due Process and fair trial rights.
45. As a proximate result of the aforementioned defendant's actions suffered great humiliation, ridicule, and mental anguish, depression, mental shock, mental trauma, emotional and mental suffering and was caused to be deprived of his liberty.

46. The aforementioned actions were done by Defendant Eric Capowski with Malice and to frame Plaintiff for crimes which he did not commit and to deny him the rights and privileges guaranteed by the U.S. Constitution and the Constitution of the State of New York.
47. Defendants initiated and continued criminal proceedings against plaintiff despite a lack of credible evidence against him, and notwithstanding their knowledge that said proceedings would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.
48. At all times relevant herein, there was a lack of probable cause to believe that the proceedings would succeed.
49. On December 14, 2022, the prosecution against the Plaintiff was dismissed.
50. The aforementioned dismissal was a favorable termination of the charges against the Plaintiff.
51. Defendants' actions violated the Plaintiff's civil rights including but not limited to his rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution including but not limited to the right to due process, the right not to be unreasonably seized, the right to a fair trial, the right of confrontation, and defendants further, denied Plaintiff his due process, denied him a fair trial, unreasonably seized the Plaintiff and violated his civil and constitutional rights.
52. Defendants' actions violated clearly established rights.
53. Defendants' action shocks the conscience.
54. No reasonable officer in the position of the defendants would have believed the actions of the defendants herein was objectively reasonable.

55. At all times relevant herein defendant acted with malice in continuing criminal proceedings against plaintiff, and/or failed to make a full statement of facts known throughout all phases of the proceedings, all of which was done to secure the conviction of the Plaintiff for an the charges, all of which he did not commit.
56. As a direct and proximate result of the foregoing acts committed by the defendants, the Plaintiff was deprived of his liberty.
57. That Defendants' actions violated Plaintiff's rights under the U.S. Constitution as well as the Constitution of the State of New York.
58. The aforementioned actions of the Defendants proximately caused Plaintiffs damages and injuries complained of herein.
59. Plaintiff suffered great humiliation, ridicule, and mental anguish, depression, mental shock, mental trauma, emotional and mental suffering as a result of his unlawful prosecution and incarceration in violation of his civil rights and liberties.
60. Defendants' actions shocks the conscience.
61. No reasonable officer could have believed that it was lawful to fabricate an inculpatory statement.
62. Defendants' actions violated Plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments of the United States Constitution, including the Due Process Clause and is right to a fair trial.

COUNT III: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

64. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling him to attorneys fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: White Plains, N.Y.
March 29, 2023

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: 

Michael H. Joseph, Esq.
18 West 33rd Street, Suite 400
New York, N.Y. 10001
Tel: 212-858-0503
Email: Michael@newyorktriallawyers.org

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

ALLAN WILLIAM,

Plaintiff(s),

Index No.:

-against-

CITY OF NEW YORK and
ERIC CAPOWSKI,

Defendant(s).

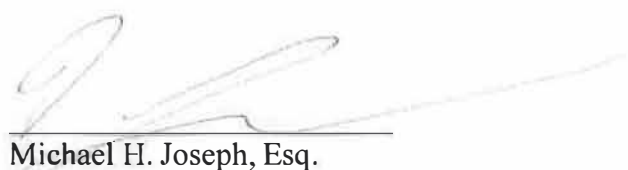
VERIFICATION

I, Michael H. Joseph, Esq. the undersigned, an attorney admitted to practice in the State of New York, state that I am a member of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York,
March 29, 2023


Michael H. Joseph, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

ALLAN WILLIAM

Plaintiff(s)

Index No.:

-against-

CITY OF NEW YORK and ERIC CAPOWSKI

Defendant(s)

NOTICE OF ELECTRONIC FILING AVAILABILITY

PLEASE TAKE NOTICE that plaintiff(s)/defendant(s) in the case captioned above consents and intends that this matter shall proceed as an electronically-filed case in the Filing by Electronic Means System ("FBEM") in accordance with the procedures therefor, described below. Service of papers by electronic means cannot be made upon a party unless that party consents to use of the system. As soon as possible after service of this Notice, each party served must indicate whether it consents.

General Information

In New York State, actions may be commenced and cases processed by means of the FBEM system in (1) tax certiorari claims in the Supreme Court in New York City and in Monroe, Westchester, and Suffolk Counties;(2) tort claims, and commercial claims in the Commercial Division, in the Supreme Court in New York City and in Albany, Monroe, Nassau, Suffolk, and Westchester counties; (3) commercial claims in the Commercial Division of Supreme Court, and proceedings in Surrogate's Court, in Erie County; and (4) selected claims against the State of New York.

Electronic filing offers significant benefits for attorneys and litigants, permitting papers to be filed with the court and served in a simple, convenient and expeditious manner. FBEM case documents are filed with the court by filing on the FBEM Website (go to "E-Courts" at www.nycourts.gov), which can be done at any time of the day or night. The documents are deemed filed when they are received by the Unified Court System server. The use of FBEM is governed by Section 202.5-b (Supreme Court), and 206.5 and 206.5-aa (Court of Claims) of the Uniform Rules for the Trial Courts.

Instructions

1. The service of this Notice constitutes a statement of intent by the undersigned that the FBEM system be used in this case. When an action or proceeding is being commenced by means of the system, this Notice must accompany service of the initiating papers.

2. As soon as possible after service of this Notice, the party served shall advise all parties whether it will agree to have the matter proceed by FBEM. Where the party served agrees, that party must, as soon as possible after service, file with the court and serve on all parties a Consent to FBEM. A Consent form can be found in the "Forms" Section of the FBEM Website. The form and other aspects of FBEM are explained in the User's Manual, available on the Website. When this Notice Regarding Availability is served with papers initiating a lawsuit, the consent must be filed prior to service of or with the responsive pleadings or motion addressed to the pleadings.

3. Once parties agree that the case will be subject to FBEM, each must PROMPTLY submit a Filing User Registration form (see the "Forms" section of the Website) to obtain the confidential Filing User

Identification Number and Password necessary to use the system. A party represented by an attorney who has previously registered as a Filing User in another case may file and serve the Consent to FBEM electronically by checking the designated box and following the instructions on the FBEM Website.

4. For additional information about FBEM, see the User's Manual and Frequently Asked Questions on the Website or contact the court in question or the FBEM Resource Center (at 646-386-3033).

Dated: White Plains, NY

March 29, 2023

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: 

Michael H. Joseph, Esq.

18 West 33rd Street, Suite 400

New York, N.Y. 10001

Tel: 212-858-0503

Email: Michael@newyorktriallawyers.org